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Privacy

Effective Date: January 1, 2020

ResMed Corp. ("ResMed", “we”, “our”, “us”) is committed to protecting the privacy and security of your personal information. We want to share with you how we treat personal information about you that we receive in connection with our website, www.resmed.com (collectively, the “Website”).

Also, use of this Website is governed by the Terms of Use posted on the Website. As noted in those Terms of Use, ResMed Inc. is a Delaware Corporation and ResMed Corp. is a Minnesota corporation. The servers that host this Website are located in the United States, and any personal details you provide to us will be processed by ResMed in the United States. The Website is intended only for United States and Canadian users.

What Personal Information We Collect About You

Information you provide

We obtain information that you provide directly to us when you use our website, for example, when you fill out a form to download a tip sheet, take a survey, subscribe to our blog or register your product information. We also obtain information through cookies when you navigate the website (see Cookie

Notice for more details). This information may include personal

- email address
- name
- address
- phone number(s)
- health information
- company
- information about your interests in and use of various products, programs, and services
- any other information that you decide to provide us with

Personal Information Collected Automatically

As you interact with the Website, we may collect certain information using automated tools, such as cookies and other technologies. For more information on how we use cookies, please read our Cookie Notice.

The types of information we collect automatically when you visit the Website may include IP addresses, device identifiers, browser characteristics, operating system details, language preferences, referring URLs, length of visits, anonymous traffic data, and pages viewed.

Personal Information We Obtain from Other Sources

In order to enhance our ability to provide relevant marketing, offers, and services to you, we obtain information about you from other sources, such as public databases, joint marketing partners, social media platforms, as well as from other third parties. Prior to receiving personal information from these third parties, we take steps to confirm that it was collected with your consent and/or that these parties are legally permitted to disclose your personal information to us.

How We May Use Your Personal Information

We may use personal information we collect through the

as information and materials regarding our products and services.

- To send administrative information to you, for example, information regarding the Sites and changes to our terms, conditions, and policies.
- To send you marketing communications, including via email and SMS in compliance with applicable laws and in accordance with your preferences, that we believe may be of interest to you.
- To personalize your experience on the Sites by presenting products and offers tailored to you.
- To allow you to participate in sweepstakes, contests and similar promotions and to administer these activities. Some of these activities have additional rules, which could contain additional information about how we use and disclose your Personal Information, so we suggest that you read these rules carefully.
- For our business purposes, such as data analysis, audits, fraud monitoring and prevention, enhancing, improving or modifying our Websites and services, identifying usage trends, determining the effectiveness of our promotional campaigns and operating and expanding our business activities.

Data Retention

We will retain your personal information for no longer than is necessary for the performance of our obligations, to achieve the purposes for which the information was collected, or as may be permitted under applicable law.

How We May Share Your Personal Information

- With our affiliates, subsidiaries, and any company owned or controlled by ResMed.
- With service providers assisting us in carrying out the transactions or services offered through this Website.

These service providers are limited to use the personal

further to a merger, reorganization, liquidation, or any other business transaction, including negotiations of such transactions), we reserve the right to disclose any information we obtain through the Service. You acknowledge that such transfers may occur and are permitted by and subject to this Privacy Notice.

- When required by subpoena, search warrant, or other legal processes, or in response to activities that are unlawful or a violation of ResMed's rules for use of the Service, or to protect and defend our rights or property.
- With others only with your explicit consent.

Your Choices

- You have the choice to participate in our surveys, contests or sweepstakes.
- You may consent or withdraw your consent to our use of your personal information for marketing at any time by following the instructions to unsubscribe included in each marketing-related email sent to you or through the following link: Unsubscribe here
- Please note that if you opt-out of receiving marketing-related emails from us, we may still send you administrative messages relevant to any specific services you may have signed up for.

Third-Party Links

For your convenience, the Service may from time to time include links to websites or services that are owned and/or operated by third parties. This Privacy Notice does not apply to those websites or services, which may have their own privacy policies or notices that you should review to understand how they may use or disclose your personal information. ResMed is

not responsible for the content or privacy practices of any

We take reasonable measures to protect your personal information from loss, theft, misuse, unauthorized access, disclosure, alteration, and destruction. Nevertheless, we cannot guarantee the complete security of your information collected through the Website as data through the Internet and online digital storage can never be completely secure.

California Privacy Rights

Privacy Notice for California Residents

This Privacy Notice for California Residents supplements ResMed Corp. (“ResMed” or “Company’s) privacy notice and applies solely to all visitors, users, and others who reside in the State of California (“consumers” or “you”). We adopt this notice to comply with the California Consumer Privacy Act of 2018 (“CCPA”), the Regulations proposed by the California Attorney General in 2019, and any terms defined in the CCPA have the same meaning when used in this notice.

Information We Collect

ResMed collects information that identifies, relates to, describes, references, is capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or device (“personal information”). In particular, Resmed has collected (or not collected, if indicated below) the following categories of personal information from its consumers within the prior twelve (12) months:

Category	Examples	Collected

A. Identifiers.	A real name, online identifier, Internet Protocol address, postal address, email address, account name, or other similar identifiers.	Yes
B. Personal information categories listed in the California Customer Records statute (Cal. Civ. Code § 1798.80(e)).	A name, signature, telephone number, education, or medical information. Some personal information included in this category may overlap with other categories.	Yes
C. Protected classification characteristics under California or federal law.	Age, medical condition, physical or mental disability, and gender.	Yes
D. Commercial information.	Records of products or services purchased,	Yes

	obtained, or	
	characteristics, or activity patterns used to extract a template or other identifier or identifying information, such as sleep, health, or exercise data.	
F. Internet or other similar network activity.	Browsing history, search history, information on a consumer's interaction with a website, application, or advertisement.	Yes
G. Geolocation data.	Physical location or movements.	Yes
H. Sensory data.	Audio, electronic, visual, thermal, olfactory, or similar information.	Yes
I. Professional or employment-	Current or past job history or	No

related	performance	
information (per the Family Educational Rights and Privacy Act (20 U.S.C. Section 1232g, 34 C.F.R. Part 99)).	directly related to a student maintained by an educational institution or party acting on its behalf, such as grades, transcripts, class lists, student schedules, student identification codes, student financial information, or student disciplinary records.	
K. Inferences drawn from other personal information.	Profile reflecting a person's preferences, characteristics, behavior, and attitudes.	Yes

ResMed obtains the categories of personal information listed above from the following sources:

- Direct interactions. You may give us your information by filling in forms or by corresponding with us by mail, phone, or email. This includes, but may not be limited to, personal data you provide when you:

- Create an online user account;

data by using cookies and other similar technologies. Please see our Cookie Notice for further details. ResMed does not sell your personal information as defined under the CCPA. Unless this Privacy Notice is updated to change this commitment, ResMed will treat personal information collected by this site as subject to a “do not sell” request under the CCPA and similar laws.

- Personal Information We Obtain from Other Sources. In order to enhance our ability to provide relevant marketing, offers, and services to you, we obtain information about you from other sources, such as public databases, joint marketing partners, social media platforms, as well as from other third parties. Prior to receiving personal information from these third parties, we take steps to confirm that it was collected with your consent and/or that these parties are legally permitted to disclose your personal information to us.

Use of Personal Information

We may use and/or disclose the personal information we collect for one or more of the following business purposes:

- To respond to your inquiries and fulfill your requests, such as to send you requested materials and newsletters, as well as information and materials regarding our products and services;
- To send administrative information to you, for example, information regarding the Sites and changes to our terms, conditions, and policies.
- To send you marketing communications, including via email and SMS in compliance with applicable laws and in accordance with your preferences, that we believe may be of interest to you.
- To personalize your experience on the Sites by presenting products and offers tailored to you.

- To allow you to participate in sweepstakes, contests and

read these rules carefully.

- For our business purposes, such as data analysis, audits, fraud monitoring and prevention, enhancing, improving or modifying our Websites and services, identifying usage trends, determining the effectiveness of our promotional campaigns and operating and expanding our business activities.

ResMed will not collect additional categories of personal information or use the personal information we collected for materially different, unrelated, or incompatible purposes without providing you notice.

Sharing Personal Information

ResMed may disclose your personal information for a business purpose. When we disclose personal information, we require that the recipient both keep that personal information confidential and not use it for any purpose except for the business purpose. We share your personal information with the following:

- With our affiliates, subsidiaries, and any company owned or controlled by ResMed.
- With service providers assisting us in carrying out the transactions or services offered through this Website. These service providers are limited to use the personal information we share with them only for the purpose(s) stated within our contracts.
- In the event of a business transaction, such as if we sell or transfer all or a portion of our business or assets (e.g., further to a merger, reorganization, liquidation, or any other business transaction, including negotiations of such transactions), we reserve the right to disclose any information we obtain through the Service. You acknowledge that such transfers may occur and are permitted by and subject to this Privacy Notice.

- When required by subpoena, search warrant, or other legal

Sale of Personal Information

In the preceding twelve (12) months, we had not sold any categories of personal information. **ResMed does not sell and will not sell personal information to third parties.**

Your Rights and Choices

The CCPA provides consumers (California residents) with specific rights regarding their personal information. This section describes your CCPA rights and explains how to exercise those rights.

Disclosure Rights

You have the right to request that we disclose the categories of personal information we collect in the preceding 12-month period prior to the request date. Consumer requests of this nature may be made no more than twice in a 12-month period.

- Category A: Identifiers.
- Category B: California Customer Records personal information categories.
- Category C: Protected classification characteristics under California or federal law.
- Category D: Commercial information.
- Category E: Biometric information.
- Category F: Internet or other similar network activity.
- Category G: Geolocation data.
- Category H: Sensory data.
- Category I: Professional or employment-related information.
- Category J: Non-public education information.

- Category K: Inferences drawn from other personal

You have the right to request that ResMed disclose certain information to you about our collection and use of your personal information over the past 12 months. Once we receive and confirm your consumer request (*see section on Exercising Your Data Rights*), we will disclose to you:

- The categories of personal information we collected about you.
- The categories of sources for the personal information we collected about you.
- Our business or commercial purpose for collecting or selling that personal information.
- The specific pieces of personal information we collected about you.
- If we shared personal information with third parties, the categories of these third parties.
- If we sold or disclosed your personal information for a business purpose, we will provide two separate lists disclosing:
- sales, identifying the personal information categories that each category of recipient purchased; and
- disclosures for a business purpose, identifying the personal information categories that each category of recipient obtained.

Deletion Request Rights

You have the right to request that ResMed delete any of your personal information that we collected from you and retained, subject to certain exceptions, required by applicable law. Once we receive and confirm your consumer request (*see section on Exercising Your Data Rights*), we will delete (and direct our service providers to delete) your personal information from our records, unless an exception applies.

We may deny your deletion request if retaining the information

requested, take actions reasonably anticipated within the context of our ongoing business relationship with you, or otherwise perform our contract with you.

- Detect security incidents, protect against malicious, deceptive, fraudulent, or illegal activity, or prosecute those responsible for such activities.
- Debug products to identify and repair errors that impair existing intended functionality.
- Exercise free speech, ensure the right of another consumer to exercise their free speech rights, or exercise another right provided for by law.
- Engage in public or peer-reviewed scientific, historical, or statistical research in the public interest that adheres to all other applicable ethics and privacy laws, when the information's deletion may likely render impossible or seriously impair the research's achievement, if you previously provided informed consent.
- Enable solely internal uses that are reasonably aligned with consumer expectations based on your relationship with us.
- Comply with a legal obligation.
- Make other internal and lawful uses of that information that are compatible with the context in which you provided it.

Exercising Your Data Rights

To exercise your disclosure, access, data portability, and deletion rights described above, please submit a consumer request to us by either:

- Calling us at 1-800-424-0737
- Completing an online request form at https://www.resmed.com/DataRequest

Only you, or a person registered with the California Secretary of State that you authorize to act on your behalf, may make a consumer request related to your personal information.

You may only make a consumer request for access or data

verify you are the person about whom we collected personal information or an authorized representative.

- Describe your request with sufficient detail that allows us to properly understand, evaluate, and respond to it.

We cannot respond to your request or provide you with personal information if we cannot verify your identity or authority to make the request and confirm the personal information relates to you. We will only use personal information provided in a consumer request to authenticate the requestor's identity or authority to make the request.

Response Timing and Format

We endeavor to respond to a consumer request within forty-five (45) days of receipt. If we require more time (up to 90 days), we will inform you of the reason and extension period in writing. We will deliver our written response by mail or electronically at your option.

Any disclosures we provide will only cover the 12-month period preceding the consumer request. The response we provide will also explain the reasons we cannot comply with a request, if applicable. For data access requests, we will deliver the data in a readily, useable format.

Non-Discrimination

We will not discriminate against you for exercising any of your CCPA rights. Unless permitted by the CCPA, we will not:

- Deny you goods or services.
- Charge you different prices or rates for goods or services, including through granting discounts or other benefits, or imposing penalties.
- Provide you a different level or quality of goods or services.

- Suggest that you may receive a different price or rate for

Other California Privacy Rights

California's "Shine the Light" law (Civil Code Section § 1798.83) permits users of our Website that are California residents to request certain information regarding our disclosure of personal information to third parties for their direct marketing purposes. We do not disclose personal information to third parties for their direct marketing purposes.

Children's Privacy

The Service is not intended for, nor targeted to, children under 13, and we do not knowingly request or collect personal information from any person under 13 years of age through the Service. If we learn that we have received information directly from a child who is under the age of 13, we will delete the information in accordance with applicable law.

Revisions

This Privacy Notice is subject to change at our discretion. We will identify changes, including material changes, to the Privacy Notice by updating the "Effective Date". Your use of the Service after any update to this Privacy Notice will constitute your acceptance of the changes.

Contacting Us

If you have any questions or concerns relating to this Privacy Policy, please contact our Privacy Office as follows:

Privacy Office
ResMed Corp.
9001 Spectrum Center Blvd, San Diego, CA 92123

Tel: 1-800-424-0737

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